

25LBCV01892 25LBCV01892

County: los-angeles

Division: Civil Law and Motion

Department: S28

Hearing date: 2026-08-25

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LB%20%2CS28%2C08%2F25%2F2026

Source SHA-256: 2e6dc52b6f4d7a7f9bd61aa92b954ad0a06f428675001118bb033c98f95130bb

Case Number: 25LBCV01892 Hearing Date: August 25, 2026 Dept: S28

BACKGROUND

On

June 25, 2025, Plaintiff filed a complaint against Defendant alleging violations of the Song-Beverly Consumer Warranty Act ("SBA") and the breach of implied warranty of merchantability.

On

May 6, 2026, Defendant filed the instant Motion for Summary Judgment.

On

August 24, 2026, one day before the hearing, Plaintiff filed an opposition. Due to the severe untimeliness of the opposition, the Court declines to consider the opposition.

DISCUSSION

Applicable

Law

The purpose of a motion for summary judgment or summary adjudication "is to provide courts with a mechanism to cut through the parties' pleadings in order to determine whether, despite their allegations, trial is in fact necessary to resolve their dispute." (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 843.) "Code of Civil Procedure section 437c, subdivision (c), requires the trial judge to grant summary judgment if all the evidence submitted, and 'all inferences reasonably deducible from the evidence'

and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law.” (Adler v. Manor Healthcare Corp. (1992) 7 Cal.App.4th 1110, 1119.)

“In ruling on the motion, the court must consider all of the evidence and all of the inferences reasonably drawn therefrom [citation] and must view such evidence [citations] and such inferences [citations] in the light most favorable to the opposing party.” (Aguilar, supra, at pp. 844-845 [quotation marks omitted].)

“On a motion for summary judgment, the initial burden is always on the moving party to make a prima facie showing that there are no triable issues of material fact.” (Scalf v. D. B. Log Homes, Inc. (2005) 128 Cal.App.4th 1510, 1519.) “A defendant or cross-defendant has met his or her burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to the cause of action. Once the defendant or cross-defendant has met that burden, the burden shifts to the plaintiff or cross-complainant to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto. The plaintiff or cross-complainant shall not rely upon the allegations or denials of its pleadings to show that a triable issue of material fact exists but, instead, shall set forth the specific facts showing that a triable issue of material fact exists as to the cause of action or a defense thereto.” (Code Civ. Proc. § 437c, subd. (p)(2).)

To establish a triable issue of material fact, the party opposing the motion must produce substantial responsive evidence. (Sangster v. Paetkau (1998) 68 Cal.App.4th 151, 166.) “If the plaintiff cannot do so, summary judgment should be granted.” (Avivi v. Centro Medico Urgente Medical Center (2008) 159 Cal.App.4th 463, 467.)

Analysis

i.

Plaintiff's

Express Warranty Claims are Time-Barred

Defendant

first argues that Plaintiff's

Express Warranty Claims are time-barred. (Mot. p. 2.)

Because

the Song-Beverly Act is silent on any limitations period for express warranty claims brought thereunder, they are governed by the statute of limitations for warranties in Commercial Code section 2725. (Krieger v. Nick Alexander Imports, Inc. (1991) 234 Cal.App.3d 205, 213-215, fn.5; accord, Mexia v. Rinker Boat Co., Inc. (2009) 174 Cal.App.4th 1297, 1305 ["California courts have held that the statute of limitations for an action for breach of warranty under the Song-Beverly Act is governed by the same statute that governs the statute of limitations for warranties arising under the California Uniform Commercial Code: section 2725"].) Accordingly, "the same rule of accrual must apply." (Krieger, 234 Cal.App.3d at 219.) Under section 2725(1), an action for breach "must be commenced within four years after the cause of action has accrued." (Cal. Com. Code § 2725(1).)

Defendant's

facts establish that the Subject

Vehicle was delivered on February 20, 2017, such that the statute of limitations began running on that date and expired four years later—by February 20, 2021. (SUMF No. 2; Cal. Com. Code, § 2725(2).) Plaintiff did not file this action until June 25, 2025. (SUMF No. 1.) Defendant argues that even if the Court presumes that Plaintiff's warranty expired on February 1, 2020 (at 57,934 miles), the four-year window for Plaintiff to file would have expired on February 1, 2024, and Plaintiff did not file her suit until June 25, 2025—more than 16 months after her time had run out.

Here, based on the undisputed

material facts, Defendant carries its burden to establish that Plaintiff's express warranty claims are time-barred. Since Defendant has met its burden, summary judgment is GRANTED as to the first, second, and third causes of action.

ii. Fourth

Cause of Action for Breach of Implied Warranty

Defendant

argues that Plaintiff's Implied Warranty Claim is late. (Mot., p. 4.)

Defendant contends that Plaintiff

purchased the vehicle sometime prior to February 20, 2017 and her implied warranty of merchantability lasted for one year expiring no later than February 20, 2018, and any suit for breach of the implied warranty during that period needed to be filed by February 20, 2022. (SUMF, ¶¶ 1, 3.)

Here, based on the undisputed

material facts, Defendant carries its burden to establish that Plaintiff's breach of implied warranty claim is time-barred. Since Defendant has met its burden, summary judgment is GRANTED as to the fourth cause of action.

iii. Fifth

Cause of Action for Fraudulent Concealment

Fraud based on concealment requires

that "(1) the defendant must have concealed or suppressed a material fact, (2) the defendant must have been under a duty to disclose the fact to the plaintiff, (3) the defendant must have intentionally concealed or suppressed the fact with the intent to defraud the plaintiff, (4) the plaintiff must have been unaware of the fact and would not have acted as he did if he had known of the concealed or suppressed fact, and (5) as a result of the concealment or suppression of the fact, the plaintiff must have sustained damage." (Bigler-Engler v. Breg, Inc. (2017) 7 Cal.App.5th 276, 310-311 (Bigler-Engler).)

Plaintiff's fifth cause of action for

fraudulent inducement by concealment is subject to a three-year statute of limitations. (CCP § 338.) A fraud cause of action accrues upon the complainant's discovery of the facts constituting the fraud. (Krieger v. Nick Alexander Imports, Inc. (1991) 234 Cal.App.3d 205, 219–220 [information bulletin from vehicle manufacturer stating same model was equipped to cope with gasoline quality, and misrepresentations relating to fuel performance at time of sale, supported an issue whether vehicle purchasers could not have earlier discovered misrepresentation and failure to disclose].)

Defendant argues that Plaintiff's fraudulent

concealment cause of action is time-barred as of February 20, 2020, while Plaintiff filed this action on June 25, 2025. (Mot., p. 5.) Defendant contends that despite never reporting a transmission issue to AHM or any Honda

dealer, Plaintiff claims that AHM committed fraud by concealing a transmission defect in the vehicle to induce the sale. Plaintiff alleges that the fraud occurred at the time of the sale on or about February 20, 2017, but she did not discover the fraud until “shortly before the filing of the complaint” on June 25, 2025. (See Compl. ¶¶ 24, 46-47.) Defendant argues that Plaintiff makes no attempt to explain how she was not negligent in failing to discover the fraud sooner and only discovering it after driving the vehicle for four years, nor has she alleged any facts or produced any evidence showing the time and surrounding circumstances of the discovery and what the discovery was.

Here, Defendant has met its burden of establishing the absence of a triable issue of material fact as to whether the fraudulent concealment claim is time-barred. Plaintiff filed the Complaint beyond three years after she alleges the fraud occurred, and Plaintiff fails to put forth any facts surrounding her delayed discovery of the fraud.

Thus,
summary judgment is GRANTED as to the fifth cause of action.

CONCLUSION

Defendant's Motion for Summary Judgment is
GRANTED.

Defendant is ordered to submit a proposed
judgment within 10 days.

A Non-Appearance Case Review re: Submission
of Proposed Judgment will be scheduled.